

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Gavin	Team: Squad #01	CCRB Case #: 201808394	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) NA, __/__/2018 10:30 AM	Location of Incident: Outside of § 87(2)(b)	18 Mo. SOL 7/1/2019	Precinct: 105
Date/Time CV Reported Mon, 09/10/2018 9:35 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 09/10/2018 9:35 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Benzant	06095	948657	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Jessica Koehler	24502	957743	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Benzant	Abuse: Police Officer Luis Benzant threatened to issue a summons to § 87(2)(b)	A . Exonerated
B . POM Luis Benzant	Abuse: Police Officer Luis Benzant threatened to seize § 87(2)(b)'s property.	B . Exonerated
C . POM Luis Benzant	Discourtesy: Police Officer Luis Benzant spoke discourteously to an individual.	C . Unsubstantiated

Case Summary

On September 10, 2018, § 87(2)(b) filed this complaint with the CCRB during his in-person interview for CCRB case #201807344.

On an unknown date in 2018, PO Luis Benzant and PO Jessica Koehler, of the 105th Precinct, stopped next to § 87(2)(b)'s vehicle, which was parked on a sidewalk. PO Benzant told § 87(2)(b) that he would receive a summons (**Allegation A: Abuse of Authority: Exonerated**). PO Benzant told § 87(2)(b) that they would tow the car (**Allegation B: Abuse of Authority: Exonerated**). An unidentified employee who works for the parking company next to the location cursed at PO Benzant, and PO Benzant allegedly responded, "What the fuck did you say?" and "Fuck you, you're an asshole" (**Allegation C: Discourtesy: Unsubstantiated**). § 87(2)(b) moved his vehicle and it was not towed. § 87(2)(b) did not receive a summons.

There is no video available for this case.

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Luis Benzant threatened to issue a summons to § 87(2)(b)

§ 87(2)(b) testified that, at approximately 10:30 a.m. on an unknown weekday in 2018, he observed PO Luis Benzant and PO Jessica Koehler park their vehicle next to his, which was parked on a sidewalk. PO Benzant and PO Koehler exited their vehicle, and PO Benzant told § 87(2)(b) he would receive a parking summons unless the vehicle was moved. § 87(2)(b) moved his vehicle and did not receive a summons (Board Review 01).

New York State Vehicle Traffic Law Article 32, Section 1202 states that no person shall park a vehicle on a sidewalk. All provisions in Section 1202 are violations (Board Review 02).

Patrol Guide Procedure 209-01 states that officers can issue a summons for misdemeanors or violations listed in the Vehicle and Traffic Law (Board Review 03).

§ 87(2)(g) . It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Abuse of Authority: Police Officer Luis Benzant threatened to seize § 87(2)(b)'s property.

§ 87(2)(b) testified that PO Benzant told him that they would tow the car, after telling him he would receive a summons. While PO Benzant said this, § 87(2)(b) was in his vehicle and the vehicle was turned on, but § 87(2)(b) had not yet moved it. § 87(2)(b) did not immediately move the vehicle because PO Benzant and PO Koehler were standing directly behind the vehicle. § 87(2)(b) told PO Benzant that he did not want to move the vehicle

while PO Benzant was still standing behind it. PO Benzant and PO Koehler moved out from behind the vehicle, and § 87(2)(b) moved the vehicle off of the sidewalk once PO Benzant and PO Koehler moved. § 87(2)(b)'s vehicle was not towed (Board Review 01).

§ 87(2)(b) testified that the officers told § 87(2)(b) that he needed to move this vehicle or that it would be towed (Board Review 04).

PO Benzant testified that he had told § 87(2)(b) to move his vehicle from the sidewalk during approximately ten discrete incidents from April to December 2018. PO Benzant said, "I will tow this vehicle off the sidewalk" before § 87(2)(b) moved his vehicle. § 87(2)(b) subsequently moved his vehicle off of the sidewalk (Board Review 05).

PO Koehler did not recall this specific incident, but testified that she and PO Benzant verbally warned § 87(2)(b) to move his vehicle off of the sidewalk multiple times and on multiple dates. PO Koehler was "sure" that "at some point" PO Benzant told § 87(2)(b) that he would tow his vehicle off of the sidewalk if § 87(2)(b) did not move the vehicle during these incidents, but could not specify in which incident this occurred. § 87(2)(b)'s vehicle would be towed, rather than issued a summons, because the plates did not match the vehicle (Board Review 06).

The New York City Department of Transportation Traffic Rules, Section 4-08 states that any illegally parked vehicle found parked at any time upon any public highway in the City may be immobilized in such a manner as to prevent its operation, and thereafter may be removed to a tow pound (Board Review 07).

§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegation B** be closed as **exonerated**.

Allegation C: Discourtesy: Police Officer Luis Benzant spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) testified that, during this incident, PO Benzant argued with § 87(2)(b) who works for the same parking company as § 87(2)(b). This individual, unidentified to the investigation, yelled at PO Benzant, saying, "You're an asshole; you keep messing with us." PO Benzant replied, "Who the hell are you talking to? What the fuck did you say?" and "Fuck you, you're an asshole." § 87(2)(b) could not remember the identity of this individual because he forgot who was working that day (Board Review 01).

§ 87(2)(b) testified that he did not know if the officers used profanity when speaking to anybody besides § 87(2)(b) during the incident. § 87(2)(b) could not remember the date of this incident and could not remember which employees were working on that date. § 87(2)(b) did not have any documentation corresponding to that day which could identify which employees were working (Board Review 04).

PO Benzant testified that he remembered § 87(2)(b) calling him, “an asshole”, but PO Benzant replied, “What did you say?”, and this individual did not respond to PO Benzant. PO Benzant denied saying, “Fuck you, you’re an asshole” to this individual. PO Benzant did not get this individual’s identification (Board Review 05).

PO Koehler remembered an incident where § 87(2)(b) said, “You’re an asshole; you keep messing with us,” to PO Benzant, but could not recall in which specific incident this occurred. PO Koehler testified that PO Benzant did not say “Fuck you, you’re an asshole” to anybody during any of these incidents (Board Review 06).

Patrol Guide Procedure 203-09 states that officers must be courteous and respectful when speaking with civilians (Board Review 08).

§ 87(2)(g) it is recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four CCRB complaints and has been named as a victim in six allegations (Board Review 09)
 - § 87(2)(b)
- PO Luis Benzant has been a member-of-service for eight years and has been a subject in seven CCRB complaints and twelve allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- As of January 7, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

